

Conducting non-commercial research on in-copyright Amazon Kindle books

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The saga continues from [where I left off](#). Since then, I emailed a publisher to request a corpus of a specific author's work in a format that would allow computational techniques (i.e. not Amazon Kindle, which has DRM protection that it is illegal to break).

Sadly, the publisher refused on the grounds of complexity, so I am no closer to being able to exercise my legitimate right to a fair-use exemption for the purpose of research here.

What can be done? [This article](#), written by a specialist (senior lecturer) in UK copyright law, describes the way in which the EU policy directive (which I previously pointed out) is implemented in UK law.

The relevant portion is section 4, wherein she points to S296ZE (a complaint to the Secretary of State) as the correct procedure to authorize use of a file that is under a set of Technological Protection Measures (TPMs). See also: [Section S296ZE of the Copyright, Designs and Patents Act](#).

But, there is a problem. It seems that this procedure, apparently the correct way to contest situations wherein the rightsholder's TPMs prevent an authorised exempted use, thereby implementing the EU directive, "does not apply to copyright works made available to the public on agreed contractual terms in such a way that members of the public may access them from a place and at a time individually chosen by them."

This seems designed to apply to subscriptions (i.e. an institution subscribes in advance and its members or the public can access the resources online at a place of their own choosing), but it could also apply to works on Amazon Kindle.

I see a few routes and to recap the situation so far:

1. The publisher has refused to voluntarily contribute a way in which we can benefit from the planned exemption for research.
2. We could next contact Amazon to ask them to make versions available that could be used for research.
3. If/when this fails, we could contact the Secretary of State and ask for a directive to yield a way of benefiting from the exemption on Kindle format books for non-commercial academic research purposes. There is a chance that this will be denied on the above grounds.